

VEHICLE HIRE AGREEMENT

Company Registration No: 12437874

Registered Office & Business / Trading Address: 34A Waterloo Road, London, NW2 7UH

Website: www.successvanhire.co.uk Email: info@successvanhire.co.uk

Office: 020 3011 1198 Out of Hours: +44 7915 193000

Agreement Ref:		Date:	
Booking Ref:		Branch:	

This Vehicle Hire Agreement is entered into between Diba Cooperation Ltd, trading as Success Van Hire (the “Lessor” or “Hire Company”), and the Hirer named below. The Hirer agrees to hire the vehicle identified in this agreement subject to the terms set out below.

HIRER / DRIVER DETAILS

Hirer Full Name:		Business Name (if applicable):	
Permanent Address:		Postcode:	
Driving Licence No:		Country of Issue:	
Licence Expiry Date:		Date of Birth:	
Email:		Contact Number:	
Additional Driver(s):		Additional Driver Licence No:	

IDENTIFICATION OF THE VEHICLE

Registration:		Make:	
Model:		Colour:	
Vehicle Type:		Replacement Vehicle (if any):	

1. RENTAL TERM

Rental Start Date:		Time:	
Rental End Date:		Time:	
Agreed Duration:		Extension (if agreed):	

The Rental Term runs from the time the Hirer/Driver takes possession of the vehicle until the vehicle is returned to and accepted by the Lessor, including any agreed extension.

2. RENTAL FEE AND DEPOSIT

Rental Fee:	£	Deposit:	£
Payment Method:		Administration Fee per PCN/charge:	£25
Other Charges (if applicable):	£	Fuel / Other Deposit:	£

3. MILEAGE

Weekly Mileage Allowance:	1,000 miles
Daily Mileage Allowance:	150 miles
Excess Mileage Charge:	25p per mile

4. INSURANCE

Where insurance is arranged by Diba Cooperation Ltd, the Hirer and every authorised driver must comply with all insurance conditions. Where insurance is not arranged by the Lessor, the Hirer is responsible for obtaining appropriate comprehensive motor insurance before using the vehicle and for ensuring every authorised driver is covered.

Insurance Arranged by Lessor:	Yes / No	Insurance Excess:	£
Glass / Windscreen Excess:	£	Other Excess:	£
Insurer / Policy Ref:		Cover Notes:	

The Hirer agrees to pay the applicable insurance excess for damage, theft or any third-party claim arising during the hire, subject to the applicable insurance policy and law. Where an insurer declines or reduces a claim because of the Hirer's or Driver's breach, negligence, misrepresentation or unauthorised use, the Hirer remains responsible for losses and costs to the extent permitted by law.

5. DAMAGE, BREAKDOWN AND OTHER CHARGES

The Hirer must take reasonable care of the vehicle and report any accident, damage, theft, warning light, breakdown or defect promptly. The Hirer is responsible for damage or loss caused by misuse, negligence, unauthorised drivers or breach of this agreement, subject to applicable law and insurance cover. The Lessor is not responsible for the Hirer's business loss, loss of income or consequential loss arising from breakdown, accident, detention or unavailability of the vehicle, except where liability cannot lawfully be excluded.

5A. DAMAGE, NEGLIGENCE, INSURANCE & HIRER LIABILITY

IMPORTANT - NO DAMAGE WAIVER / EXCESS WAIVER IS INCLUDED UNLESS EXPRESSLY STATED IN WRITING

The Hirer understands that motor insurance does not remove the Hirer's financial responsibility for damage to the vehicle. No Collision Damage Waiver (CDW), Damage Waiver or Excess Waiver is provided by Diba Cooperation Ltd trading as Success Van Hire unless expressly stated in writing on this Hire Agreement.

The Hirer is responsible for any new loss or damage occurring to the vehicle during the hire period, subject to the applicable insurance policy, the agreed insurance excess and applicable law. Where an insured claim is made, the Hirer remains responsible for the applicable insurance excess and any other sums properly due under this agreement.

Where loss or damage is not covered by the applicable insurance policy, or where insurance cover is declined, invalidated or restricted because of the Hirer's or Driver's breach of this agreement, deliberate act, misuse or negligence, the Hirer may be responsible for the reasonable cost of the resulting loss or damage to the extent permitted by law.

This includes, where applicable, damage caused by reversing into posts, walls, barriers or other objects; striking low bridges, height restrictions, roofs, trees, canopies or other overhead objects; incorrect loading; off-road use; misuse; incorrect fuel; tyre, wheel, glass or underbody damage; or continuing to drive after a warning light, puncture or mechanical problem where doing so causes further damage.

OVERHEAD / ROOF DAMAGE: The Hirer accepts responsibility for damage caused by striking low bridges, height restrictions, trees, canopies, roofs or other overhead objects, subject to the terms of the applicable insurance policy and applicable law.

The Hirer must immediately report any collision, impact, damage, theft or incident to Success Van Hire and must not arrange or authorise repairs without the Lessor's prior approval, except where emergency action is reasonably necessary for safety.

Any insurance excess is not a damage waiver. Payment of the rental charge or deposit does not provide the Hirer with a Collision Damage Waiver or Excess Waiver.

Hirer Initials confirming acceptance of this section: _____

6. AUTHORISED DRIVERS

The vehicle may only be driven by drivers named and approved under this agreement and, where applicable, accepted for insurance purposes. The Hirer must not allow any unauthorised person to drive the vehicle. Any breach may result in additional charges and may invalidate or restrict insurance cover.

Hirer Signature confirming authorised-driver declaration: _____ Date: _____

7. OPERATOR'S LICENCE / LAWFUL USE

The Hirer is responsible for ensuring that the vehicle is used lawfully and that any Operator's Licence or other authorisation required for the intended use is held. If the vehicle is detained, seized or subject to enforcement because of the Hirer's unlawful or unauthorised use, the Hirer will be responsible for reasonable recovery, storage, release and related costs, and any loss recoverable under this agreement and applicable law.

8. LIABILITY STATEMENT – PCNs, TfL, PARKING AND ROAD-USER CHARGES

IMPORTANT – HIRER'S ACCEPTANCE OF LIABILITY

I acknowledge and agree that, for the entire period of this hire agreement, I shall be liable as if I were the owner of the vehicle for any penalty charge, fixed penalty, parking charge, traffic contravention, road-user charge or other charge incurred in respect of the vehicle, where liability may lawfully be transferred to the hirer.

This includes, but is not limited to, Penalty Charge Notices (PCNs), TfL Red Route contraventions, parking and bus lane contraventions, Congestion Charge, ULEZ and other TfL road-user charges, together with any other penalties or charges arising from the use of the vehicle during the hire period.

I agree that Diba Cooperation Ltd, trading as Success Van Hire, may provide my name, permanent address, driving licence details, a copy of this hire agreement and other information reasonably required to Transport for London (TfL), local authorities, the police, private parking operators or other relevant enforcement authorities for the purpose of identifying me as the hirer and, where permitted by law, transferring liability to me.

I agree to reimburse Diba Cooperation Ltd trading as Success Van Hire for any penalty, charge or other amount which it is required to pay as a result of my use of the vehicle during the hire period, together with the administration charge stated in this agreement where applicable. This liability also applies to any replacement vehicle supplied under this agreement and any agreed extension of the original hire period.

Where payment is made by debit or credit card, I authorise the Lessor, where permitted by the card agreement and applicable law, to charge sums properly due under this agreement, including unpaid rental, damage, penalties, road-user charges and agreed administration charges.

I consent to my relevant personal information being used and disclosed where reasonably necessary for vehicle-hire administration, insurance, accident or damage claims, debt recovery, fraud prevention, crime detection and compliance with requests from police, TfL, local authorities and other lawful enforcement or regulatory bodies, subject to applicable data-protection law.

Hirer's Full Name:		Date:	
Hirer's Signature:		Time:	
Lessor Signature:		Lessor Name:	

9. GENERAL DECLARATION

The Hirer confirms that the information supplied in connection with this hire is, to the best of their knowledge, true and complete. The Hirer confirms that they have read and understood this agreement, including the insurance terms, authorised-driver declaration and Liability Statement, and agree to be bound by its terms.

Hirer Signature:		Print Name:	
Date:		Time:	
Lessor Signature:		Print Name:	

Vehicle & Correspondence Address: Flat 20, Garrison Heights, London, NW7 1RF
Address used for vehicle registration and vehicle-related correspondence.

DIBA COOPERATION LTD trading as SUCCESS VAN HIRE
Please retain a copy of this agreement for your records.